

VRMC shall prepare and e-file a proposed order conforming to this ruling and attach a copy of the Court's tentative ruling.

10. 9:00 AM CASE NUMBER: C25-00714
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN
HEARING IN RE: PLAINTIFF'S DEMURRER TO CROSS-COMPLAINT
FILED BY: DRAGOLOVICH, PETER L
TENTATIVE RULING:

By stipulation of the Parties and Counsel, this hearing is continued to September 24, 2026. No appearance is required on March 4, 2026.

11. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC's demurrer to the first amended complaint is **continued to April 15, 2026**. No appearance is required at the March 4, 2026 hearing.

Defendants included a declaration claiming that they met the meet and confer requirements for a demurrer. Defendants' attorney sent an e-mail to Plaintiff's attorney regarding the initial complaint. Plaintiff's attorney responded, agreeing to make some changes. Plaintiff's counsel then filed a FAC without providing Defendant's attorney a draft in advance. Defendants' attorney states that FAC did not cure all the claim deficiencies in the complaint. Defendants' attorney then concludes "I took the filing of the First Amended Complaint in this form to indicate voluntarily resolution as to the outstanding deficiencies could not reasonably be reached and demurrer was appropriate. In light of this course of correspondence, I believe Defendants meet-and-confer obligations under CCP §430.41 have been met." (Garrett dec. ¶13.)

Before every demurrer is filed, the moving party must engage in a meet and confer with the opposing party in person, by telephone or by video conference. (Code of Civil Procedure section 430.41.) There is no indication that the parties met in person, by telephone or by video conference regarding the original complaint. Further, Defendants were required to engage in a new meet and confer process after the FAC was filed. Defendants did not comply with the meet and confer requirements. This matter is being continued to allow the parties time to properly meet and confer in person, by telephone or by video conference.

In addition, both the moving and opposing memoranda violated the Rules of Court. Defendants filed a 15-page brief without the required tables. (California Rules of Court, rule 3.1113(f).) Plaintiff filed an 18-page brief, which is beyond the 15-page limit. (California Rules of Court, rule 3.1113(d).) This matter is also being continued to allow the parties to comply with the Rules of Court.